

Madhya Pradesh District Court Technical Manpower (Appointment & Conditions of Service) Rules, 2019

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State of Madhya Pradesh - Act

Madhya Pradesh District Court Technical Manpower (Appointment & Conditions of Service) Rules, 2019

MADHYA PRADESH

India

Madhya Pradesh District Court Technical Manpower (Appointment & Conditions of Service) Rules, 2019

Rule

MADHYA-PRADESH-DISTRICT-COURT-TECHNICAL-MANPOWER-APPOINTMENT-CONDITIONS-OF-SERVICE-RULES-2019 of 2019

Published on 19 June 2019

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Madhya Pradesh District Court Technical Manpower (Appointment & Conditions of Service) Rules, 2019

Published vide Notification No. dz3202-2019-21-c-(,d), dated 19.6.2019

Last Updated 28th January, 2020

Notification No. dz3202-2019-21-c-(,d). - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, the Governor of Madhya Pradesh, in consultation with the High Court of Madhya Pradesh, hereby, makes following Rules to regulate the appointment and other conditions of service of posts of Technical Manpower created under the National Policy and Action Plan for Implementation of Information and Communication Technology in

the Indian Judiciary, prepared by the e-Committee of the Supreme Court of India, dated 01.08.2005, for the service of employees of the establishment of District Courts under the superintendence of High Court of Madhya Pradesh.

1.

Short title, commencement and extent of application.

(1)

These Rules shall be called "The Madhya Pradesh District Court Technical Manpower (Appointment & Conditions of Service) Rules, 2019".

(2)

They shall come into force from the date of publication in the Madhya Pradesh Gazette.

(3)

These Rules shall apply as one time measure of appointment.

(4)

These Rules shall apply to, -

(a)

all persons appointed in Technical Manpower Posts in the Establishment of District Courts in the State of Madhya Pradesh.

(b)

person appointed in Technical Manpower posts includes System Officer and System Assistant.

2.

The appointment shall be made on the following posts.

(1)

System Administrator (now re-designated as Junior System Analyst).

(2)

Console Operator/System Manager (now re-designated as Senior Computer Programmer Assistant).

3.

Appointing Authority.

-

S.No.

Categories

Appointing Authority

(1)

System Administrator (now re-designated as Junior System Analyst)

The District Judge of the district concerned

(2)

Console Operator/ System Manager (now re-designated as Senior Computer Programmer Assistant)

4.

Age.

- Candidate should be above 18 years but should not have crossed the maximum age prescribed by the State Government:

Provided that the Candidate appointed under the scheme of e- Court Project of the Supreme Court of India and has worked for 2 years or more, shall be entitled for age relaxation of the period of such appointment/services, subject to maximum age limit up to 55 years, for the posts mentioned in Schedule-I.

5.

Qualification and Mode of Appointment to the posts.

- The qualification and mode of appointment to the posts shall be as prescribed in Schedule-I and Schedule-II of these rules.

6.

Provision for reservation of Appointment.

(1)

Posts shall be reserved for the members of the Scheduled Castes, Scheduled Tribes and Other Backward Classes to such extent and in such manner as may be specified by the State Government from time to time. The reservation for these categories shall be applicable only vertically:

Provided that reservation on the district level posts shall be as per the district wise reservation roster, issued by the General Administration Department from time to time.

(2)

Total 6 percent Horizontal reservation shall be given to persons with physical impairment in the following manner:-

1.

Blindness and low vision

1.5%

2.

Deaf and hard of hearing

1.5%

3.

Locomotive disability including cerebral palsy,
leprosy cured, dwarfism, acid attack victims and muscular
dystrophy

1.5%

4.

Autism, intellectual disability, specific
learning disability and mental illness

1.5%

Provided that if such reserved posts or any of them are not filled in a given recruitment year due to non-availability of suitable candidate, they shall be re-advertised for respective categories once more and if any such posts remain vacant due to the same reason, they shall first be filled by interchange among the five categories of disabled persons and if it remains vacant, they shall be treated as un-reserved posts.

Provided that the reservation shall be made as per the posts identified and earmarked by the High Court for specially abled persons.

(3)

As per the provision of the Madhya Pradesh Civil Services (Special Provisions for Appointment of Women) Rules, 1997, 33 percent Horizontal reservation shall be applicable for women candidates.

(4)

Appointments shall be made strictly in accordance with the roster- prescribed separately for direct recruitment.

(5)

Verification of percentage of physical impairment case of "Specially abled" candidates shall be done by the District Medical Board.

(6)

As per provision of The Madhya Pradesh Lok Seva (Anushuchit Jatiyon Anusuchit Jan Jatiyon Aur Anya Pichhade Vargon Ke Liye Arakshan) Adhiniyam, 1994, in the event of non-availability of the eligible and suitable candidates amongst the Other Backward Classes, Scheduled Castes and Scheduled Tribes, as the case may be, in a particular year, the vacancies so reserved for them shall not be filled by the members who do not belong to such castes or tribes or classes as the case may be.

If in respect of any recruitment year any vacancy reserved or any category of persons belongs to Other Backward Castes, Scheduled Castes and Scheduled Tribes remains unfilled, such vacancy shall be carried forward to be filled up in the next or three consecutive recruitment years.

When a vacancy carried forward in the manner aforesaid it shall not be counted against the quota of the vacancies reserved for the concerned category of persons for the recruitment year to which it is carried forward:

Provided that the appointing authority may at any time undertake a special recruitment to fill up such unfilled vacancy and if such vacancies remain unfilled it shall be carried forward to the next or three consecutive recruitment years in total and thereafter such reservation would lapse.

7.

Interpretation of these Rules.

- Whenever any difficulty or doubt arises in applying and/or interpreting these Rules, the decision of the High Court, thereon, shall be final.

8.

Relaxation.

- Nothing in these Rules shall be construed to limit or abridge the power of the High Court to deal with the case of any person(s) to whom these rules apply. The High Court may dispense with or relax any particular rule in such manner as may appear to it as just and equitable.

9.

Residuary provision.

(1)

All members of the service shall be subject to the superintendence of the High Court.

(2)

In respect of all matters (not provided in these rules) regarding the conditions of service of the members including matters relating to the conduct, control and discipline, provisions of M.P. Civil Services (General Conditions of Services) Rules, 1961, M.P. Civil Services (Conduct) Rules 1965, M.P. Civil Services (Classification, Control and Appeal) Rules, 1966 and all others Rules applicable to M.P. State Government Employees shall apply subject to such modification, variation and exceptions, as the High Court may, from time to time, specify.

I

(See Rule 5)

S.No.

Name of Service

Education & Technical Qualification

Prescribed

1.

Junior System Analyst

1.

B.E./B.Tech (C.S/IT.)

/ MCA / M.Sc. (C.S/IT.) from recognized university with atleast 2 years experience of working on Linux/ Open Source Software / Windows / DBMS / Software development/Desktop &Network support.

Or

ME/M.Tech (C.S/ IT.) with atleast 1 year experience of working on Linux / Open source software / Windows / DBMS / Software development /Desktop & Network support.

2.

Work experience of not less than 2 years in District Court Establishment or High Court

2.

Senior Computer Programmer Assistant

1.

B.E. / B.Tech / B.Sc.

in C.S. / I.T. /Electronics & Telecommunications / B.C.A./

M.C.A./ M.Sc.

(Electronics / C.S. / I.T) with atleast 1 year

experience in working on Linux / Open Source Software / Windows / DBMS / Software development.

2.

Work experience of not less than 2 years in District Court Establishment or High Court.

II

(See Rule 5)

S. No.

Name of the post

Classification

scale of pay

Appointing authority

Method of Recruitment

1.

Junior System Analyst

Class - III

9300-34800+GP 4200 (As per 6th pay commission)

District Judge

By direct recruitment through suitability test

conducted by High Court from amongst the persons appointed as

District Judge System Officer under e court Project of the

Supreme Court of India with essential qualification prescribed

in these Rules

2.

Senior Computer Programmer Assistant

Class - III

9300-34800+GP 3600 (As per 6th pay commission)

District Judge

By direct recruitment through suitability test

conducted by High Court from, amongst the persons appointed as

District Judge Assistant under e-Court Project of the Supreme

Court of India with essential qualification prescribed in these

Rules.

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